

SENATE FLOOR VERSION

February 11, 2025

SENATE BILL NO. 23

By: Stanley of the Senate

and

Roe of the House

An Act relating to smoking in motor vehicles;
defining terms; prohibiting certain act; providing
for penalty; requiring deposit of fee in certain
fund; providing for codification; and providing an
effective date.

BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

SECTION 1. NEW LAW A new section of law to be codified
in the Oklahoma Statutes as Section 1248 of Title 21, unless there
is created a duplication in numbering, reads as follows:

A. As used in this section:

1. "Marijuana" shall have the same meaning as provided in
Section 2-101 of Title 63 of the Oklahoma Statutes;

2. "Motor vehicle" shall have the same meaning as provided in
Section 1-134 of Title 47 of the Oklahoma Statutes; and

3. "Vapor products" shall have the same meaning as provided in
Section 1-229.12 of Title 63 of the Oklahoma Statutes.

1 B. It shall be unlawful for any person to knowingly smoke
2 tobacco or marijuana or use a vapor product in a motor vehicle while
3 in the presence of a minor. Any person in violation of the
4 provisions of this section shall be assessed a fine not less than
5 Fifty Dollars (\$50.00) nor more than One Hundred Dollars (\$100.00)
6 which shall be deposited into the Tobacco Prevention and Cessation
7 Revolving Fund established pursuant to Section 1-105d of Title 63 of
8 the Oklahoma Statutes.

9 SECTION 2. This act shall become effective November 1, 2025.

10 COMMITTEE REPORT BY: COMMITTEE ON PUBLIC SAFETY
11 February 11, 2025 - DO PASS
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